



CHAPTER 1.

An Act to prohibit the discharge in or transshipment for Spanish territory of weapons and munitions of war and other articles from certain ships, to prohibit the carriage in such ships of such articles consigned to or destined for Spanish territory, and for purposes connected therewith. A.D. 1936.

[3rd December 1936.]

BE it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) No article to which this Act applies shall be discharged at any port or place in Spanish territory or within the territorial waters adjacent thereto from a ship to which this Act applies, and no such article shall be transhipped on the high seas from any such ship into any vessel bound for any such port or place, and no such article consigned to or destined for any such port or place shall be taken on board or carried in any such ship. Prohibition of the discharge in and transshipment for Spanish territory of munitions of war from certain ships.

(2) The articles to which this Act applies are—

(a) all articles which were on the twenty-third day of November, nineteen hundred and thirty-six, prohibited to be exported from the United Kingdom by an Order in Council made by virtue of section eight of the Customs

A.D. 1936.

42 & 43 Vict.

c. 21.

11 & 12

Geo. 5. c. 32.

and Inland Revenue Act, 1879, and section seventeen of the Finance Act, 1921 (which relate to weapons and munitions of war and other articles); and

(b) all articles which may after the passing of this Act be prohibited to be so exported by any such Order in Council and to which this Act is declared by that Order to apply.

(3) The ships to which this Act applies are—

(a) all British ships, except ships registered—

(i) in any of the following Dominions, that is to say, the Dominion of Canada, the Commonwealth of Australia, the Dominion of New Zealand, the Union of South Africa and the Irish Free State; or

(ii) in any territory administered by His Majesty's Government in any of the Dominions aforesaid; and

(b) all other ships registered in, or licensed under the law of, any colony or British protectorate or any territory in respect of which a mandate on behalf of the League of Nations has been accepted by His Majesty and is being exercised by His Majesty's Government in the United Kingdom.

(4) If any article is discharged or transhipped from, or taken on board or carried in, any ship in contravention of this Act, any person being the owner, charterer or master of the ship shall, if he is privy to the contravention, be guilty of a misdemeanour.

(5) Section four hundred and forty-nine of the principal Act (which provides for the forfeiture of dangerous goods carried under a false description and in certain other cases) shall apply in relation to any ship to which this Act applies as if any articles carried in contravention of this Act were dangerous goods carried under a false description.

(6) Any officer mentioned in section seven hundred and twenty-three of the principal Act who has reason to suspect that a ship is contravening or has contravened the provisions of this Act shall, without prejudice to the

powers conferred by that section, have the following powers, that is to say :— A.D. 1936.

- (a) he may go on board the ship and for that purpose may detain the ship or require it to stop or to proceed to some convenient place;
- (b) he may require the master to produce any documents relating to any cargo which is being carried or has been carried on the ship;
- (c) he may search the ship and examine the cargo and require the master or any member of the crew to open any package or parcel which he suspects to contain any articles to which this Act applies;
- (d) he may make any other examination or inquiry which he deems necessary to ascertain whether this Act is being or has been contravened;
- (e) if it appears to him that this Act is being or has been contravened, he may, without summons, warrant or other process, take the ship and her cargo and her master and crew to the nearest or most convenient port in a country to which this Act extends, in order that the alleged contravention may be adjudicated upon by a competent court.

(7) If any ship duly required under the last foregoing subsection to stop or to proceed to some convenient place fails to comply with that requirement, the master of the ship shall be guilty of a misdemeanour, and if a master or any other person fails to do any other thing duly required of him under that subsection or obstructs any officer in the exercise of his powers under that subsection, he shall be liable to a fine not exceeding one hundred pounds.

(8) Anything which has been done before the commencement of this Act in purported exercise of any such power as is mentioned in subsection (6) of this section, and which would have been lawfully done if this Act had come into operation on the twenty-third day of November, nineteen hundred and thirty-six, shall be deemed to have been lawfully done.

(9) For the purposes of this Act the expression "Spanish territory" shall include the Spanish zone of Morocco.

A.D. 1936. 2.—(1) This Act may be cited as the Merchant Shipping (Carriage of Munitions to Spain) Act, 1936.

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Short title,
construc-
tion, inter-
pretation,
extent and
duration.

(2) This Act and the Merchant Shipping Acts, 1894 to 1932, shall be construed as one, and those Acts and this Act may be cited together as the Merchant Shipping Acts, 1894 to 1936.

57 & 58 Vict. (3) In this Act the expression “the principal Act”
c. 60. means the Merchant Shipping Act, 1894.

(4) This Act shall extend, not only to the United Kingdom, but also to—

(a) the Isle of Man, the Channel Islands, British India, Newfoundland and every colony; and

(b) every country to which Part XIII of the principal Act for the time being extends by virtue of an Order in Council made under section five of the Foreign Jurisdiction Act, 1890.

53 & 54 Vict.
c. 37.

(5) This Act shall continue in force until His Majesty by Order in Council is pleased to declare that it is no longer necessary or expedient that it should continue in force:

52 & 53 Vict. Provided that on the expiration of this Act sub-
c. 63. section (2) of section thirty-eight of the Interpretation Act, 1889, (which relates to the effect of repeals) shall apply as if this Act had been repealed by another Act.

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